

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JOSE SANTIAGO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER RYAN, Tax Reg. 947446, SERGEANT
VINCENT LEE, Tax Reg. 921067, SERGEANT
NICHOLAS SPATARO, and POLICE OFFICERS JOHN
DOES #1-10 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified Amended Complaint in this action, and to serve a copy of your answer, or, if the Amended Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

DATED: New York, New York
September 30, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007

Police Officer CHRISTOPHER RYAN, Tax Reg. 947446, 7th Precinct, 19 ½ Pitt Street,
New York, NY 10013

Sergeant VINCENT LEE, Tax Reg. 921067, 7th Precinct, 19 ½ Pitt Street, New York,
NY 10013

Sergeant NICHOLAS SPATARO, 291 Balchen Street, Massapequa Park, New York
11762

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INDEX NO.:

VERIFIED AMENDED
COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JOSE SANTIAGO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Amended Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section § 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 29, 2012, at approximately 1:00 a.m., plaintiff, Jose Santiago, while lawfully present in the vicinity of Houston Street and Baruch Drive, New York, New York, was subject to an unlawful stop, frisk, search, detention, false arrest, false imprisonment and seizure by New York City police officers. Thereafter, the defendant police officers violated plaintiff's right to due process and right to a fair trial, unlawfully strip-searched plaintiff at the 7th precinct, and maliciously prosecuted plaintiff. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, strip-searched, falsely arrest, falsely imprisoned, maliciously prosecuted plaintiff and denied plaintiff the right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JOSE SANTIAGO is a resident of the County of New York, State of New York.

3. Defendant Police Officer CHRISTOPHER RYAN, Tax Reg. 947446, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer CHRISTOPHER RYAN, Tax Reg. 947446, was at all times relevant herein assigned to the 7th precinct.

5. Defendant Police Officer CHRISTOPHER RYAN, Tax Reg. 947446, is being sued in his individual and official capacity.

6. Defendant Sergeant VINCENT LEE, Tax Reg. 921067, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Sergeant VINCENT LEE, Tax Reg. 921067, was at all times relevant herein assigned to the 7th precinct.

8. Defendant Sergeant VINCENT LEE, Tax Reg. 921067, is being sued in his individual and official capacity.

9. Defendant Sergeant NICHOLAS SPATANO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant Sergeant NICHOLAS SPATANO was at all times relevant herein assigned to the 7th precinct.

11. Defendant Sergeant NICHOLAS SPATANO is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On May 29, 2012, at approximately 1:00 a.m., plaintiff was lawfully present in the vicinity of Houston Street and Baruch Drive, when suddenly the defendant police officers, including defendant Police Officer CHRISTOPHER RYAN, approached plaintiff in an aggressive and discourteous manner.

19. Plaintiff did not feel free to walk away from the officers because of the manner in which they approached him.

20. The defendant police officers lacked reasonable suspicion, probable cause or any legal justification to stop, question, frisk, search, or seize plaintiff.

21. Police Officer CHRISTOPHER RYAN walked away from plaintiff to a nearby construction sight, picked up a hammer that was laying in the construction site, and asked plaintiff if the hammer belonged to him.

22. Plaintiff told the officer that the hammer did not belong to him.

23. Shortly thereafter, the defendant police officers placed plaintiff under arrest and unlawfully handcuffed plaintiff, without probable cause or legal justification.

24. At no point in time did plaintiff commit a crime or violate the law in any way nor did the defendant police officers have an objective reason to believe he committed a crime.

25. Nevertheless, defendants transported plaintiff to the 7th precinct, where he was unlawfully strip-searched, fingerprinted, photographed, and detained in a holding cell for many hours.

26. At no time did defendants have reasonable suspicion or probable cause to believe plaintiff secreted drugs, weapons, or contraband underneath his clothing.

27. Defendant Sergeant VINCENT LEE authorized the defendant police officers to conduct an unlawful strip-search of plaintiff based upon Sergeant VINCENT LEE's fabricated allegation that plaintiff smelled like marijuana.

28. Thereafter, defendants forced plaintiff into the bathroom at the 7th precinct and unlawfully strip-searched him.

29. Specifically, plaintiff was forced to take off all of his clothes and shake out each piece of clothing.

30. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks.

31. Plaintiff was then ordered to face the defendant police officers and was forced to lift his genitals.

32. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

33. At approximately 4 a.m. on May 29, 2012, plaintiff was transported to Manhattan Central Booking.

34. The defendant police officers maliciously and without probable cause provided false, misleading, and/or incomplete information about evidence and circumstances leading plaintiff's arrest to the District Attorney's office, which initiated the prosecution against plaintiff without probable cause.

35. At arraignment, plaintiff was charged with Possession of Burglar's Tools (PL 140.35), Criminal Mischief in the Fourth Degree (PL 145.00(1)), and Attempted Petit Larceny (PL 110/155.25), based upon the defendants' false allegations against him.

36. After approximately 14 hours at Manhattan Central Booking, plaintiff was arraigned on May 29, 2012 at approximately 6:00 p.m. and released on his own recognizance.

37. Plaintiff was forced to make one court appearance on July 18, 2012, when all charges brought against him were dismissed by motion of the District Attorney's Office, and terminated in his favor.

38. Some of the defendant police officers observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, strip-search, seizure, false arrest and malicious prosecution against plaintiff.

39. The unlawful stop, question, frisk, search, strip-search, false arrest, false imprisonment, malicious prosecution, denial of due process and denial of his right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

40. The unlawful strip-search of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

41. Additionally, there is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

42. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

43. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that “there is a ‘[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.’” Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

44. As a result of defendant City of New York and the New York City Police Department’s deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff’s Fourth, Fifth and Fourteenth Amendment Rights

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, falsely arrested, falsely imprisoned, unlawfully strip-searched, maliciously prosecuted, denied his due process rights and denied the right to a fair trial without probable cause, in violation of plaintiff’s right to be free of an unreasonable seizure under the Fourth Amendment

of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

51. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 56 with the same force and effect as if fully set forth herein.

58. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

59. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

60. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

61. In withholding/creating false evidence against plaintiff Jose Santiago and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

62. As a result of the foregoing, plaintiff Jose Santiago sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

FIFTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

65. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Upon arriving at the 7th Precinct, defendants forced plaintiff to endure a humiliating and intrusive and unlawful strip search without an individualized reasonable suspicion that plaintiff was concealing illegal drugs, weapons or other contraband based upon the particular characteristics of the arrestee, and/or the circumstances of the arrest of plaintiff.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01-CIV-6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. Oct.

23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

76. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

79. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched at the 7th Precinct by the individually named defendant police officers.

80. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

83. Defendants commenced and continued a criminal proceeding against plaintiff.

84. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

85. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

86. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Failure to Intervene

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

90. Defendants failed to intervene to prevent the unlawful conduct described herein.

91. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

JURY DEMAND

92. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jose Santiago demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 30, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
September 30, 2015

/s/
STUART E. JACOBS